

Playbook: Publicity and Reference Rights

NORTHWIND SYSTEMS INTERNAL LEGAL PLAYBOOK

SECTION 14: PUBLICITY AND REFERENCE RIGHTS

Effective Date: Q1 2026

Document Ref: NW-PLB-SEC14-REV4

14.1 Preferred Position (Standard Model Clause)

When Northwind Systems ("Northwind") is drafting the initial Master Services Agreement (MSA) or Order Form, the attorney of record shall insert the following text verbatim into the Publicity section. No modifications are permitted without applying the fallback thresholds in Section 14.2.

> 14.1(a) Press Release and Case Study. Customer grants Northwind the irrevocable, royalty-free right to issue a joint press release announcing Customer as a Northwind enterprise client within thirty (30) days of the Go-Live Date. Furthermore, Customer agrees to participate in one (1) co-branded written case study and one (1) video testimonial per calendar year, utilizing commercially reasonable staff resources, provided that Northwind submits drafts at least ten (10) business days prior to publication.

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> 14.1(b) Logo Display and Marketing Collateral. Customer grants Northwind a non-exclusive, worldwide, royalty-free license to use Customer's corporate name, trademarks, and logos on Northwind's public website, investor decks, earnings presentations, conference exhibits, and standard sales collateral.

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> 14.1(c) Reference Inquiries and Site Visits. Customer agrees to act as a reference client for prospective Northwind purchasers, subject to a cap of four (4) verbal inquiries per calendar year and one (1) closed-door site visit per calendar year, requiring at least five (5) business days' prior written notice.

14.2 Fallback Position

If Customer rejects the Preferred Position, Northwind counsel may concede to the following minimum acceptable terms without escalation, provided the contract meets the monetary thresholds defined herein.

> 14.2(a) Logo-Only Authorization. Northwind may display Customer's standard corporate logo solely on the "Our Clients" roster of Northwind's public website, provided Customer's Annual Contract Value (ACV) exceeds fifty thousand dollars (\$50,000).

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> 14.2(b) Opt-Out Notice Period. Customer may revoke logo display rights by providing written notice to Northwind at least thirty (30) days prior to the annual renewal date of the applicable Order Form. Northwind shall remove said logo within fifteen (15) business days of receipt of such notice.

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> 14.2(c) Press Release Veto. Northwind shall forfeit the right to issue a standalone press release unless Customer's ACV exceeds one hundred fifty thousand dollars (\$150,000) *and* Customer provides express written pre-approval of the release text at least five (5) business days prior to distribution.

14.3 Walk-Away Position

Northwind counsel shall terminate negotiations on publicity rights—or insert a mutual prohibition clause—if Customer demands any of the following terms. Under no circumstances shall Northwind execute an agreement containing these positions without prior CEO approval.

> 14.3(a) Complete Prohibition on Logo Use. Contractual language forbidding Northwind from listing Customer as a client in any capacity, internal or external, where the Customer ACV is below two hundred thousand dollars (\$200,000).

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> 14.3(b) Unilateral Indemnification for Marketing Assets. Any clause requiring Northwind to indemnify, hold harmless, or defend Customer against third-party intellectual property infringement claims arising directly from Northwind's display of Customer's trademarked logo in accordance with Section 14.1.

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> 14.3(c) Pre-Payment Penalties. Any provision conditioning the validity of the underlying SaaS license upon Customer's continuous approval of marketing collateral, or tying marketing approvals to fee withholding rights.

14.4 Numeric and Categorical Thresholds

The following hard metrics govern all risk assessments and fallback triggers under this Section 14:

1. ACV Floor for Press Releases: One hundred fifty thousand dollars (\$150,000.00). Deals below this threshold are not eligible for public press announcements.
2. ACV Floor for Website Logo Placement: Fifty thousand dollars (\$50,000.00). Deals below this threshold must exclude logo usage unless specifically approved under Section 14.5.
3. Cure Period for Unapproved Marketing Collateral: Seven (7) calendar days following receipt of written notice from Customer detailing an unauthorized or non-conforming use of its brand assets.
4. Maximum Annual Reference Inquiries: Four (4) verbal or email reference requests per calendar year per Customer entity.
5. Notice Period for Reference Site Visits: Ten (10) business days' advance written notice required from Northwind's sales operations team to Customer's designated primary account contact.

14.5 Named Deviations and Escalation Matrix

Any departure from the Preferred or Fallback positions that touches upon the following sensitive categories requires mandatory written escalation and sign-off from the designated corporate officer:

1. Fortune 500 Financial Institutions (e.g., Apex Global Bank, Meridian Trust): If a counterparty mandates strict regulatory non-association clauses prohibiting the naming of banking clients, the matter must be escalated to Marcus Vance, Chief Revenue Officer, to determine if the logo restriction is offset by overall deal margin.
2. Public Sector, Defense, and Intelligence Contractors: If a government agency or federal prime contractor requires prior security clearance of all marketing materials under federal FAR or DFARS provisions, the clause must be escalated to Sarah Jenkins, VP of Regulatory Compliance.
3. Exclusive Endorsement Demands: If Customer demands exclusivity in their specific vertical market (e.g., "Northwind shall not state or imply that any other logistics provider uses the software"), the trade-off and restriction must be escalated to Elena Rostova, General Counsel.

14.6 Worked Examples of Counterparty Language

Acceptable Counterparty Language (Approved for Insertion)

Example 1 (Logo License with Termination Right):

> "Customer grants Northwind a limited, non-exclusive license to display Customer's standard word mark on Northwind's public website customer roster. Customer may terminate this license at any time upon providing thirty (30) days' prior written notice to Northwind, following which Northwind shall cease all display within fifteen (15) business days."

Example 2 (Prior Written Consent for Press):

> "Neither party shall issue any press release or public announcement concerning the commercial relationship established by this Agreement without the other party's prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed; provided, however, that Northwind may include Customer's name in its standard client lists distributed to prospective investors and auditors."

Unacceptable Counterparty Language (Reject / Strike Immediately)

Example 3 (Indemnification Trap):

> "Northwind shall defend, indemnify, and hold harmless Customer, its officers, and directors from and against any and all claims, damages, liabilities, and expenses (including reasonable attorneys' fees) arising out of or resulting from any claim that Northwind's use of Customer's logo infringes any trademark, copyright, or privacy right of any third party." *(Violation: Northwind does not indemnify for standard trademark display).*

Example 4 (Broad Blanket Gag Order):

> "Under no circumstances shall Northwind, its affiliates, employees, or contractors publicly disclose, hint at, or reference the existence of this Agreement, the identity of Customer, or the deployment of Northwind's software within Customer's IT environment, regardless of whether such disclosure occurs in marketing materials, case studies, SEC filings, or earnings calls." *(Violation: Blocks public investor disclosures and fundamental B2B reference rights).*